

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Maycol Mejia,

Plaintiff,

— against —

City of New York, Steven Grant, Azizjon
Saidmurodov, FKU Sosa, and John Does ##1-10,

Defendants.

Index No.

SUMMONS

JURY TRIAL DEMANDED

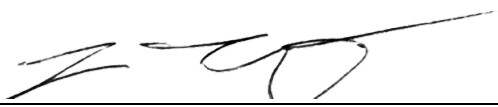
To the above-named Defendants: You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint. The basis of venue is the location where the claims arose.

TO:

THE CITY OF NEW YORK
New York City Law Department
100 Church Street
New York, NY 10007

Steven Grant
Azizjon Saidmurodov
164 E 102nd St.
New York, NY 10029

Dated: June 5, 2023
New York, NY
WERTHEIMER LLC

By: 

Joel A. Wertheimer
14 Wall Street, Suite 1603
New York, New York 10005
(646) 720-1098
joel@joelwertheimer.com

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COMPLAINT

JURY TRIAL DEMANDED

PARTIES

1. Plaintiff Maycol Mejia is a resident of New York City.
2. Defendant Steven Grant is a New York City Police Officer.
3. Defendant Azizjon Saidmurodov is a New York City Police Officer.
4. Defendant FNU Sosa is a New York City Police Officer.
5. John Does #1-#10 are New York City police officers who work in the 23rd Precinct.
6. Defendant City of New York is a municipal corporation in the State of New York.

JURISDICTION AND VENUE

7. This Court has jurisdiction over this action pursuant to general jurisdiction under the New York State Constitution.
8. 18. Venue is proper under CPLR § 503(a) because a substantial part of the events giving rise to the claim occurred in New York County, New York.

FACTS

9. Maycol Mejia was attending an informal wake for a friend on the night of July 17, 2022.

10. Mr. Mejia, who is not an English speaker, was drinking beers on the stoop of a Manhattan apartment building, while mourning the friend.

11. As the service wound down, Mr. Mejia and his sister Leydi Mejia remained on the sidewalk. Neither person impeded pedestrian traffic, made excessive noise, nor caused any public disruption.

12. Standing on the corner of Madison Avenue and 109th Street, a police car pulled up in front of a deli on the other side of the street.

13. Mr. Mejia was approached by an NYPD officer who asked for his ID.

14. Mr. Mejia did not understand the request and was confused. He asked to know why.

15. The officers abruptly arrested Mr. Mejia, rather than give him a ticket.

16. He was taken to the ground.

17. An officer then pointed a taser at him.

18. The Defendant Officers who arrested him put him in handcuffs that were excessively tight.

19. Mr. Mejia told the officers that the handcuffs were excessively tight and that they were hurting him, repeatedly.

20. He was taken to the 23rd Precinct and complained about the handcuffs again.
21. He told Officer Sosa, who speaks Spanish, about the pain.
22. He first made complaints in the patrol vehicle.
23. He was held for hours at the precinct.
24. His partner eventually arrived at the precinct where she was told he was to be charged with resisting arrest and obstructing government administration.
25. Finally, at 3:00 a.m. he was taken to the hospital in handcuffs and shackles.
26. There he made complaints about his hands being numb.
27. The skin on the top of his hands was completely numb.
28. Nearly a year later, Mr. Mejia has numbness in his hands.
29. He was taken to central booking the next morning without being arraigned when the District Attorney's Office declined to prosecute.
30. Overly tight handcuffs are known to cause nerve damage because nerves in the wrist track in compartments that are sensitive to pressure and damage.
31. Handcuff-related injury to the most commonly affected nerve, the superficial radial, can be severe and permanent.
32. Overly tight handcuffs are an ongoing violation of the Fourth Amendment as once the arrested person is secured, force beyond that needed to maintain the seizure is inherently gratuitous and unreasonable.

33. Officers could place a second pair of double locked handcuffs on the arrested individual and remove the first pair without any flight risk.

34. Mr. Mejia still has scarring on his wrists from the excess tightness of the handcuffs.

35. He is seeing a hand specialist because of the pain and numbness in his wrists.

36. Injuries to the wrists frequently degenerate over time as a result of the scar tissue surrounding the narrow nerve cavities.

FIRST CLAIM FOR RELIEF

Excessive Force

***Under 42 U.S.C. Section 1983 and New York City Law Administrative Code § 8-801 for
Violations of Plaintiff's Rights Under the Fourth Amendment to the United States
Constitution***

37. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

38. Defendants used force against Plaintiff that was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

39. The types and levels of force Defendants used against Plaintiff were unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

40. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury,

pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

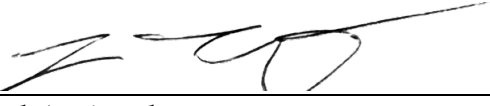
41. Under New York City Law Administrative Code § 8-801 *et seq.* the City of New York is responsible for the actions of its officers and qualified immunity is not a defense to such force.

WHEREFORE, Plaintiff Maycol Mejia demands judgment against the above-captioned Defendants as follows:

- a. For compensatory damages, jointly and severally, in an amount to be determined at trial, but not less than three hundred thousand dollars;
- b. For punitive damages, jointly and severally, in an amount to be determined at trial;
- c. For reasonable attorneys' fees, costs, and disbursements, under 42 U.S.C. § 1983, New York City Law Administrative Code § 8-801, and other applicable laws;
- d. For pre- and post-judgment interest as allowed by law; and
- e. For such other relief as this Court deems just and proper.

Dated: New York, New York
June 5, 2023

WERTHEIMER LLC

By: 
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New York, New York 10005
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